

LICENCE AGREEMENT

1. DEFINITIONS AND INTERPRETATION

1.1 In this Licence Agreement the following expressions have the meanings set opposite:

Academic Purposes fundamental or basic research or academic teaching, including any fundamental research that is funded by any public or charitable body, but not any purpose that generates revenue (as opposed to grant income) for the Licensee or any third party. Any research that is wholly or partially sponsored by any profit making organisation or that is carried out for the benefit of any profit-making organisation is not an Academic Purpose;

a Derived Work any modification of, or enhancement or improvement to, any of the DL_POLY Software and any software or other work developed or derived from any of the DL_POLY Software;

the DL_POLY Software the release and version of the DL_POLY Software downloaded by the Licensee from the DL_POLY Website immediately after the Licensee agrees to the terms and conditions of this Licence Agreement;

the DL_POLY Website the website with the URL http://www.ccp5.ac.uk/DL_POLY, and any website that from time to time replaces that website;

a Harmful Element any virus, worm, time bomb, time lock, drop dead device, trap and access code or anything else that might disrupt, disable, harm or impede the operation of any information system, or that might corrupt, damage, destroy or render inaccessible any software, data or file on, or that may allow any unauthorised person to gain access to, any information system or any software, data or file on it;

Intellectual Property patents, trade marks, service marks, registered designs, copyrights, database rights, design rights, know-how, confidential information, applications for any of the above, and any similar right recognised from time to

time in any jurisdiction, together with all rights of action in relation to the infringement of any of the above;

the Licence Period the period beginning when the Licensee agrees to the terms and conditions of this Licence Agreement and downloads the DL_POLY Software from the DL_POLY Website and ending on the termination of this Licence Agreement under clause 5.2.

2. LICENCE

2.1 STFC grants the Licensee an indefinite, non-exclusive, non-transferable, royalty free licence to use, copy, modify, and enhance the DL_POLY Software during the Licence Period on the terms and conditions of this Licence Agreement provided that:

2.1.1 the Licensee may not distribute any of the DL_POLY Software or any Derived Work to any third party, or share their use with any third party (whether free of charge or otherwise), and the Licensee may not sub-license the use of any of the DL_POLY Software to any third party unless, in each case, that third party has complied with clause 2.3 below;

2.1.2 the Licensee may not use the DL_POLY Software on behalf of, or for the benefit of, any third party (including, without limitation, using it to provide bureau, outsourcing or application services or facilities management services) party unless that third party has complied with clause 2.3 below; and

2.1.3 the DL_POLY Software and any Derived Work may be used by the Licensee and its employees and registered students for Academic Purposes only.

2.2 If the Licensee wishes to use the DL_POLY Software or any Derived Work in any way except for Academic Purposes, or wishes to distribute or make the DL_POLY Software or any Derived Work available to any third party for non-Academic Purposes, it must obtain a commercial licence from STFC. STFC may refuse to grant the Licensee a commercial licence. If STFC agrees to grant a commercial licence, that licence will be on such terms and conditions as STFC sees fit.

2.3 If the Licensee wishes to carry out any collaboration for Academic Purposes with any third party and that third party needs to use the DL_POLY Software in connection with that collaboration, or if the Licensee wishes to make the DL_POLY Software available online

to any third party for Academic Purposes, the Licensee must direct that third party to the DL_POLY Website. That third party may use the DL_POLY Software and any Derived Work (whether obtained from STFC or from the Licensee) only if it has completed the registration process on the DL_POLY Website and agreed to the terms and conditions of the Licence Agreement for the use of the DL_POLY Software for Academic Purposes that then appear on the DL_POLY Website.

2.4 This Licence Agreement allows the Licensee to use only the release or version of the DL_POLY Software downloaded by the Licensee from the DL_POLY Website immediately after the Licensee agrees to the terms and conditions of this Licence Agreement; the Licensee must acquire a new licence for any future release or version of the DL_POLY Software that it wishes to use.

2.5 The Licensee will not tamper with, or remove, any copyright or other proprietary notice or any disclaimer that appears on or in any part of the DL_POLY Software, and will reproduce the same in all copies of any of the DL_POLY Software and in all Derived Works.

3. WARRANTIES AND LIABILITY

3.1 The DL_POLY Software is provided for Academic Purposes free of charge. Therefore STFC gives no warranty and makes no representation in relation to the DL_POLY Software or any assistance or advice that STFC may give in connection with the DL_POLY Software. The Licensee will indemnify STFC against any and all claims arising as a result of the Licensee having made any of the DL_POLY Software or any Derived Work available to any third party.

3.2 Before using any of the DL_POLY Software, the Licensee will check that the DL_POLY Software does not contain any Harmful Element. STFC does not warrant that the DL_POLY Software will run without interruption or be error free, or be free from any Harmful Element. STFC is not obliged to provide any support or error correction service, assistance or advice in relation to the DL_POLY Software, but the Licensee may access any error corrections and online assistance that STFC chooses to make available on the DL_POLY Website from time to time. If STFC does provide that sort of service, assistance or advice, subject to clause 3.7, STFC will not be liable for any loss or damage suffered by the Licensee as a result.

3.3 STFC will not be liable to the Licensee to the extent that any loss or damage is caused: by the Licensee's failure to implement, or the Licensee's delay in implementing, any correction or advice

in relation to the DL_POLY Software that STFC has made available on the DL_POLY Website; or by the Licensee's failure to acquire a licence of and to implement any new release or version of the DL_POLY Software that would have remedied or mitigated the effects of any error, defect, bug or deficiency in the DL_POLY Software.

3.4 The Licensee acknowledges that proper use of the DL_POLY Software and any Derived Work is dependent on the Licensee, its employees and students exercising proper skill and care in inputting data and interpreting the output provided by the DL_POLY Software or that Derived Work. STFC will not be liable for the consequences of decisions taken by the Licensee or any other person on the basis of that output. STFC does not accept any responsibility for any use which may be made by the Licensee of that output, nor for any reliance which may be placed on that output, nor for advice or information given in connection with that output.

3.5 Subject to clause 3.7, STFC's liability or any breach of this Licence Agreement, any negligence or arising in any other way out of the subject matter of this Licence Agreement or the use of the DL_POLY Software, will not extend to any incidental or consequential damages or losses, or any loss of profits, loss of revenue, loss of data, loss of contracts or opportunity, whether direct or indirect, even if the Licensee has advised STFC of the possibility of those losses arising or if they were or are within STFC's contemplation.

3.6 Subject to clause 3.7, the aggregate liability of STFC for any and all breaches of this Licence Agreement, any negligence or arising in any other way out of the subject matter of this Licence Agreement or the use of the DL_POLY Software will not exceed in total £5000.

3.7 Nothing in this Licence Agreement limits or excludes STFC's liability for death or personal injury caused by its negligence or for any fraud, or for any sort of liability that, by law, cannot be limited or excluded.

3.8 The express undertakings and given by STFC in this Licence Agreement and the terms of this Licence Agreement are in lieu of all warranties, conditions, terms, undertakings and obligations on the part of STFC, whether express or implied by statute, common law, custom, trade usage, course of dealing or in any other way. All of these are excluded to the fullest extent permitted by law.

4. INTELLECTUAL PROPERTY RIGHTS AND ACKNOWLEDGEMENTS

4.1 Nothing in this Licence Agreement assigns or transfers any Intellectual Property Rights in any of the DL_POLY Software.

Those rights are reserved to STFC.

- 4.2 The Licensee will ensure that, if any of its employees or students publishes any article or other material resulting from, or relating to, a project or work undertaken with the assistance of any part of the DL_POLY Software, that publication will contain the following acknowledgement:

"DL_POLY is a molecular dynamics simulation package written by W. Smith, T.R. Forester and I.T. Todorov and has been obtained from STFC's Daresbury Laboratory via the website http://www.ccp5.ac.uk/DL_POLY".

5. TERMINATION

- 5.1 This Licence Agreement will take effect and the Licence Period will start when the Licensee has agreed to the terms and conditions of this Licence Agreement and downloaded the DL_POLY Software from the DL_POLY Website.

- 5.2 This Licence Agreement will terminate immediately and automatically if:

5.2.1 the Licensee is in breach of this Licence Agreement; or

5.2.2 the Licensee becomes insolvent, or if an order is made or a resolution is passed for its winding up (except voluntarily for the purpose of solvent amalgamation or reconstruction), or if an administrator, administrative receiver or receiver is appointed over the whole or any part of its assets, or if it makes any arrangement with its creditors.

- 5.3 The Licensee's right to use the DL_POLY Software will cease immediately on the termination of this Licence Agreement, and the Licensee will destroy all copies of the DL_POLY Software that it or any of its employees or students then holds.

- 5.4 Clauses 1, 2.2, 3, 4, 5.3, 5.4, 5.5 and 6 will survive the expiry of the Licence Period and the termination of this Licence Agreement, and will continue indefinitely.

- 5.5 STFC may stop providing any assistance or advice in relation to, or any corrections, new releases or versions of the DL_POLY, and may stop updating or publishing the DL_POLY Website at any time.

6. GENERAL

- 6.1 Headings: The headings in this Licence Agreement are for ease of reference only; they do not affect its construction or

interpretation.

- 6.2 Assignment etc: The Licensee may not assign or transfer this Licence Agreement as a whole, or any of its rights or obligations under it, without first obtaining the written consent of STFC.
- 6.3 Illegal/unenforceable provisions: If the whole or any part of any provision of this Licence Agreement is void or unenforceable in any jurisdiction, the other provisions of this Licence Agreement, and the rest of the void or unenforceable provision, will continue in force in that jurisdiction, and the validity and enforceability of that provision in any other jurisdiction will not be affected.
- 6.4 Waiver of rights: If STFC fails to enforce, or delays in enforcing, an obligation of the Licensee, or fails to exercise, or delays in exercising, a right under this Licence Agreement, that failure or delay will not affect its right to enforce that obligation or constitute a waiver of that right. Any waiver by STFC of any provision of this Licence Agreement will not, unless expressly stated to the contrary, constitute a waiver of that provision on a future occasion.
- 6.5 Entire agreement: This Licence Agreement constitutes the entire agreement between the parties relating to its subject matter. The Licensee acknowledges that it has not entered into this Licence Agreement on the basis of any warranty, representation, statement, agreement or undertaking except those expressly set out in this Licence Agreement. The Licensee waives any claim for breach of, or any right to rescind this Licence Agreement in respect of, any representation which is not an express provision of this Licence Agreement. However, this clause does not exclude any liability which STFC may have to the Licensee (or any right which the Licensee may have to rescind this Licence Agreement) in respect of any fraudulent misrepresentation or fraudulent concealment before the signing of this Licence Agreement.
- 6.6 Amendments: No variation of, or amendment to, this Licence Agreement will be effective unless it is made in writing and signed by each party's representative.
- 6.7 Third parties: No one who is not a party to this Licence Agreement has any right to prevent the amendment of this Licence Agreement or its termination, and no one except a party to this Licence Agreement may enforce any benefit conferred by this Licence Agreement, unless this Licence Agreement expressly provides otherwise.
- 6.8 Governing law: This Licence Agreement is governed by, and is to be construed in accordance with, English law. The

English Courts will have exclusive jurisdiction to deal with any dispute which has arisen or may arise out of or in connection with this Licence Agreement, except that STFC may bring proceedings against the Licensee or for an injunction in any jurisdiction.